

EU Cosmetics Regulation — Regulation (EC) No 1223/2009

ARTICLE 1

Title: Scope and Objective of the Cosmetics Regulation

Jurisdiction: International

Category: Classification

Source Citation: Regulation (EC) No 1223/2009, Article 1, 2009

Plain English Summary:

This Regulation establishes the rules that must be followed when a cosmetic product is made available on the EU market. Its purpose is to ensure that the EU cosmetics market functions properly while providing a high level of protection for human health.

For an Ayurvedic startup, this is the basic EU legal framework that applies when an Ayurvedic product is being marketed as a cosmetic product in the EU.

The Exact Legal Text:

Article 1 Scope and objective

This Regulation establishes rules to be complied with by any cosmetic product made available on the market, in order to ensure the functioning of the internal market and a high level of protection of human health.

Keywords/Triggers:

EU cosmetic regulation, Ayurvedic cosmetic product, cosmetic product EU, EU cosmetics law, cosmetic market access, cosmetic product compliance, Regulation 1223/2009

ARTICLE 2

Title: Definitions of Cosmetic Products and Related Terms

Jurisdiction: International

Category: Classification

Source Citation: Regulation (EC) No 1223/2009, Article 2, 2009

Plain English Summary:

Article 2 defines the key terms used throughout the EU Cosmetics Regulation, most importantly what qualifies as a cosmetic product. A product must be intended mainly or exclusively for functions such as cleaning, perfuming, changing appearance, protecting, keeping the body in good condition or correcting body odours, and products intended to be ingested, inhaled, injected or implanted are excluded from the cosmetic definition.

For an Ayurvedic RAG system, this is one of the most important classification provisions because it helps distinguish an Ayurvedic cosmetic such as a cream or hair product from an Ayurvedic product that may instead fall under another regulatory framework.

The Exact Legal Text:

Article 2 Definitions

1. For the purposes of this Regulation, the following definitions shall apply:

- (a) cosmetic product means any substance or mixture intended to be placed in contact with the external parts of the human body (epidermis, hair system, nails, lips and external genital organs) or with the teeth and the mucous membranes of the oral cavity with a view exclusively or mainly to cleaning them, perfuming them, changing their appearance, protecting them, keeping them in good condition or correcting body odours;
- (b) substance means a chemical element and its compounds in the natural state or obtained by any manufacturing process, including any additive necessary to preserve its stability and any impurity deriving from the process used but excluding any solvent which may be separated without affecting the stability of the substance or changing its composition;
- (c) mixture means a mixture or solution composed of two or more substances;
- (d) 'manufacturer means any natural or legal person who manufactures a cosmetic product or has such a product designed or manufactured, and markets that cosmetic product under his name or trademark;
- (e) distributor means any natural or legal person in the supply chain, other than the manufacturer or the importer, who makes a cosmetic product available on the Community market;
- (f) end user means either a consumer or professional using the cosmetic product;
- (g) making available on the market means any supply of a cosmetic product for distribution, consumption or use on the Community market in the course of a commercial activity, whether in return for payment or free of charge;

(h) placing on the market means the first making available of a cosmetic product on the Community market;

(i) importer means any natural or legal person established within the Community, who places a cosmetic product from a third country on the Community market;

(j) harmonised standard means a standard adopted by one of the European standardisation bodies listed in Annex I to Directive 98/34/EC of the European Parliament and of the Council of 22 June 1998 laying down a procedure for the provision of information in the field of technical standards and regulations and of rules on information society services [(13)] on the basis of a request made by the Commission in accordance with Article 6 of that Directive;

(k) nanomaterial means an insoluble or biopersistent and intentionally manufactured material with one or more external dimensions, or an internal structure, on the scale from 1 to 100 nm;

(l) preservatives means substances which are exclusively or mainly intended to inhibit the development of micro-organisms in the cosmetic product;

(m) colorants means substances which are exclusively or mainly intended to colour the cosmetic product, the body as a whole or certain parts thereof, by absorption or reflection of visible light; in addition, precursors of oxidative hair colorants shall be deemed colorants;

(n) UV-filters means substances which are exclusively or mainly intended to protect the skin against certain UV radiation by absorbing, reflecting or scattering UV radiation;

(o) undesirable effect means an adverse reaction for human health attributable to the normal or reasonably foreseeable use of a cosmetic product;

(p) serious undesirable effect means an undesirable effect which results in temporary or permanent functional incapacity, disability, hospitalisation, congenital anomalies or an immediate vital risk or death;

(q) withdrawal means any measure aimed at preventing the making available on the market of a cosmetic product in the supply chain;

(r) recall means any measure aimed at achieving the return of a cosmetic product that has already been made available to the end user;

(s) frame formulation means a formulation which lists the category or function of ingredients and their maximum concentration in the cosmetic product or gives relevant quantitative and qualitative information whenever a cosmetic product is not covered or only partially covered by such a formulation. The Commission shall

provide indications for the establishment of the frame formulation and adapt them regularly to technical and scientific progress.

2. For the purposes of point (a) of paragraph 1, a substance or mixture intended to be ingested, inhaled, injected or implanted into the human body shall not be considered to be a cosmetic product.
3. In view of the various definitions of nanomaterials published by different bodies and the constant technical and scientific developments in the field of nanotechnologies, the Commission shall adjust and adapt point (k) of paragraph 1 to technical and scientific progress and to definitions subsequently agreed at international level. That measure, designed to amend non-essential elements of this Regulation, shall be adopted in accordance with the regulatory procedure with scrutiny referred to in Article 32(3).

Keywords/Triggers:

cosmetic product definition, Ayurvedic cream classification, Ayurvedic hair product EU, cosmetic vs medicinal product, EU cosmetic definition, cosmetic ingredients, nanomaterial cosmetics

Article 3

Title: Safety of Cosmetic Products

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 3, 2009

Plain English Summary:

Cosmetic products placed on the EU market must be safe for human health when used under normal or reasonably foreseeable conditions. Safety must take into account the product's presentation, labelling, instructions for use and disposal, and other information provided by the Responsible Person.

The Exact Legal Text:

A cosmetic product made available on the market shall be safe for human health when used under normal or reasonably foreseeable conditions of use, taking account, in particular, of the following:

- (a) presentation including conformity with Directive 87/357/EEC;
- (b) labelling;
- (c) instructions for use and disposal;

(d) any other indication or information provided by the responsible person defined in Article 4.

The provision of warnings shall not exempt persons defined in Articles 2 and 4 from compliance with the other requirements laid down in this Regulation.

Keywords/Triggers:

cosmetic product safety, human health, cosmetic labelling, product presentation, instructions for use, Responsible Person, cosmetic safety requirements, EU cosmetics regulation

Article 4

Title: Responsible Person

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 4, 2009

Plain English Summary:

Only cosmetic products with a designated Responsible Person established within the Community may be placed on the EU market. The Responsible Person is responsible for ensuring that the cosmetic product complies with the Regulation, with specific rules depending on whether the product is manufactured in the EU, imported, or marketed under a distributor's name.

The Exact Legal Text:

1. Only cosmetic products for which a legal or natural person is designated within the Community as 'responsible person' shall be placed on the market.
2. For each cosmetic product placed on the market, the responsible person shall ensure compliance with the relevant obligations set out in this Regulation.
3. For a cosmetic product manufactured within the Community, and not subsequently exported and imported back into the Community, the manufacturer established within the Community shall be the responsible person.

The manufacturer may designate, by written mandate, a person established within the Community as the responsible person who shall accept in writing.

4. Where a cosmetic product manufactured within the Community, and not subsequently exported and imported back into the Community, the manufacturer is established outside the Community, he shall designate, by written mandate, a person established within the Community as the responsible person who shall accept in writing.
5. For an imported cosmetic product, each importer shall be the responsible person for the specific cosmetic product he places on the market.

The importer may, by written mandate, designate a person established within the Community as the responsible person who shall accept in writing.

6. The distributor shall be the responsible person where he places a cosmetic product on the market under his name or trademark or modifies a product already placed on the market in such a way that compliance with the applicable requirements may be affected.

The translation of information relating to a cosmetic product already placed on the market shall not be considered as a modification of that product of such a nature that compliance with the applicable requirements of this Regulation may be affected.

Keywords/Triggers:

Responsible Person, EU cosmetic compliance, cosmetic manufacturer, cosmetic importer, cosmetic distributor, EU market placement, cosmetic product responsibility

Article 5

Title: Obligations of Responsible Persons

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 5, 2009

Plain English Summary:

The Responsible Person must ensure compliance with key requirements covering safety, GMP, safety assessment, product information, notification, substances, animal testing, labelling, claims and adverse effects. If a product is non-compliant, the Responsible Person must take corrective action and, where necessary, withdraw or recall it and notify the relevant authorities where there is a health risk.

The Exact Legal Text:

1. Responsible persons shall ensure compliance with Articles 3, 8, 10, 11, 12, 13, 14, 15, 16, 17, 18, Article 19(1),(2) and (5), as well as Articles 20, 21, 23 and 24.
2. Responsible persons who consider or have reason to believe that a cosmetic product which they have placed on the market is not in conformity with this Regulation shall immediately take the corrective measures necessary to bring that product into conformity, withdraw it or recall it, as appropriate.

Furthermore, where the cosmetic product presents a risk to human health, responsible persons shall immediately inform the competent national authorities of the Member States in which they made the product available and of the Member State in which the product information file is readily accessible, giving details, in particular, of the non-compliance and of the corrective measures taken.

3. Responsible persons shall cooperate with these authorities, at the request of the latter, on any action to eliminate the risks posed by cosmetic products which they have made available on the market. In particular, responsible persons shall, further to a reasoned request from a competent national authority, provide it with all the information and

documentation necessary to demonstrate the conformity of specific aspects of the product, in a language which can be easily understood by that authority.

Keywords/Triggers:

Responsible Person obligations, cosmetic compliance, cosmetic product recall, cosmetic product withdrawal, health risk notification, competent authorities, cosmetic corrective action, product conformity